

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUBC040649: SAHARA CONSTRUCTION CO., INC. vs STAPLES
CONSTRUCTION COMPANY, INC., A CALIFORNIA CORPORATION, et al.
07/15/2026 in Department 42
Motion to Strike Complaint and Answer by Sahara Construction Co Inc**

Motion: Staples’ Motion to Strike Sahara Construction’s Complaint & Answer (*unopposed*)

Tentative Ruling:

The Court intends to DENY, without prejudice, the Motion to Strike Sahara Construction’s Complaint, as well as its Answer to the Cross-Complaint, and sets and Order to Show Cause on **August 4, 2026**, by which time Sahara is required to have retained counsel.

Analysis:

a. Motion to Strike

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules Court, rule 3.1322, subd. (b).) The Court may, upon motion, or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a) & (b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.) When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend. (*Perlman v. Municipal Court* (1979) 99 Cal.App.3d 568, 575.)

“[W]e give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1126.) “The rules of pleading [generally] require...only general allegations of ultimate fact. [Citations.] The plaintiff need not plead evidentiary facts supporting the allegation of ultimate fact. [Citation.] A pleading is adequate so long as it appraises the defendant of the factual basis for the plaintiff’s claim.” (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1469-1470.)

“A motion to strike out, or, as often termed, ‘a motion to strike,’ is traditionally used to reach certain kinds of defects in a pleading that are not subject to demurrer.” (5 Witkin, Cal. Proc. (5th Ed. 2020) Plead § 1008.) “A motion to strike can also be used as a ‘scalpel’—to cut out any ‘irrelevant, false or improper’ matters inserted therein.” (Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial (The Rutter Group 2020) ¶ 7:177.) Nevertheless, “use of the motion to strike should be cautious and sparing” and should not be used as “a procedural ‘line item veto’ for the civil defendant.” (*PH II v. Sup. Ct.* (1995) 33 Cal.App.4th 1680, 1683.)

Pursuant to Code of Civil Procedure section 435.5, subdivision (a), before filing a motion to strike, the objecting party shall meet and confer in telephone or in person with the opposing party for the purpose of determining whether an agreement can be reached to resolve the objections to the pleading. The meet and confer shall be completed at least five (5) days before the responsive pleading is due. (Code Civ. Proc., § 435.5, subd. (a)(2).)

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b. Application

The Motion to Strike is straightforward. The Court grants the unopposed request for judicial notice, which includes the Order Granting Attorney's Motion to be Relieved as Counsel, filed by Sahara Construction Co. Inc.'s former counsel. The Court also finds that the meet and confer efforts were sufficient so the Court can reach the merits.

Defendants Staples, Atlantic, and Hartford argue that because Plaintiff Sahara, a corporation, is no longer represented by counsel, its Complaint should be stricken. Defendant Staples, as a Cross-Complainant, also moves for an order striking Sahara's Answer to its Cross-Complaint.

The law on this point is clear and well-established: "[a] corporation cannot appear in court by an officer who is not an attorney and it cannot appear in propria persona" (*Paradise v. Nowlin* (1948) 86 Cal.App.2d 897, 898.) A corporation has the capacity to sue and defend, but it is not a natural person and therefore cannot appear in an action *in pro persona*. (See *Merco Construction Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 731). Corporations can only appear through counsel. (*Id.*)

In *Paradise*, the respondent moved to dismiss an appeal because the appellant, a corporation, failed to pay the filing fee within the requisite time. (*Paradise, supra*, 86 Cal.App.2d at p. 898.) The appellate court agreed that dismissal was warranted on that ground, but on its own motion dismissed the appeal for "another and more important reason ... that the defendant corporation filed [its] notice of appeal...and its opposition to the dismissal...in propria persona. Such notice and opposition are void by reason of the corporation's lack of power to represent itself in an action in court." (*Ibid.*)

It is clear and unopposed that Sahara as Plaintiff and Cross-Defendant has run afoul of the *Paradise* rule prohibiting corporations to appear in pro per. The question, however, is whether its violation of the *Paradise* necessitates automatically striking its Complaint and Answer from the record.

In 2004, the court in *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141 noted that authorities subsequent to the 1948 *Paradise* decision have "question[ed] the present day validity of *Paradise's* summary conclusion that a notice of appeal (or, impliedly, another document) filed on behalf of a corporation by a nonattorney is automatically void" and have found it "more appropriate and just to treat a corporation's failure to be represented by an attorney as a defect that may be corrected." (*Id.* at pp. 1147, 1149 [holding a complaint filed by a non-attorney on behalf of a corporation could be timely cured].) In *CLD*, the court cited "the weight of nationwide authority [in favor of allowing for timely curing of a pro se filing on behalf of a corporation] and this state's increasing acceptance of the view that representation of the corporation by an attorney is not an absolute prerequisite to the court's fundamental power to hear or determine a case." (*Id.* at p. 1149.) Thus, the court held, just as courts arrange for counsel when minors have attempted to represent themselves in court, a corporation "should not be foreclosed from going forward with its legal right to sue because of a defective complaint that can be readily and easily cured without prejudice to either its opponent or the court." (*Id.* at p. 1152.)

In another case, *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, the court, without any mention of *Paradise*, notified the corporation that its appeal would be dismissed unless it timely retained counsel, which it did. (*Id.* at p. 1282.)

Here the Court will follow the approach of *CLD* and *Gamet* and afford Sahara the opportunity to cure the error so long as it can timely do so without prejudicing the opposing party or the court.

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(*CLD, supra*, 120 Cal.App.4th at p. 1150 [finding no prejudice because the parties were at threshold of the lawsuit].) Rather than striking Sahara’s Complaint and Answer to the Cross-Complaint, the Court finds it is “more appropriate and just to treat a corporation's failure to be represented by an attorney as a defect that may be corrected, on such terms as are just in the sound discretion of the court.” (*Id.* at p. 1149.)

Accordingly, the Court DENIES this Motion without prejudice and sets an Order to Show Cause on **August 4, 2026 at 8:20 a.m.**, by which time Sahara is required to have obtained counsel. No extensions will be authorized unless Sahara can demonstrate that an extension of time will not cause any further unwarranted delays or prejudice to Defendants and Cross-Complainant.